

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

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GARY COOPER,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. DANIEL COY
SHIELD NUMBER 380 and P.O. MURTAZA
MANDLIYADAV SHIELD NUMBER 721,

Defendants.
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SUMMONS

Plaintiff designates
New York County as
the place of trial.

The basis of venue
is: location of
incident
Plaintiff resides
at:
2022 Lexington Ave.
County of New York

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 28, 2015



MARK E. SEITELMAN LAW OFFICES, P.C.
Attorneys for Plaintiff
111 Broadway, 9th Floor
New York, New York 10006
(212) 962-2626

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. DANIEL COY
One Police Plaza
New York, New York 10007

P.O. MURTAZA MANDLIYADAV
One Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GARY COOPER,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. DANIEL COY
SHIELD NUMBER 380 and P.O. MURTAZA
MANDLIYADAV SHIELD NUMBER 721,

Defendants.

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Plaintiff, by his attorneys, MARK E. SEITELMAN LAW OFFICES,
P.C., complaining of the defendant, respectfully alleges, upon
information and belief:

1. Plaintiff resides at 2022 Lexington Avenue, Apt. 5B, New
York, New York 10035.

2. The cause of action alleged herein arose in the County of
New York, City and State of New York.

3. This action falls within one or more of the exceptions
set forth in CPLR §1602.

4. On March 13, 2014, and at all times herein mentioned,
defendant THE CITY OF NEW YORK was, and still is, a municipal
corporation.

5. Prior hereto on April 21, 2014, and within the time
prescribed by law, a sworn Notice of Claim stating, among other
things, the time when and place where the injuries and damages were
sustained, together with plaintiff's demands for adjustment thereof
was duly served on the claimant's behalf on the Comptroller for the
City of New York and that thereafter said Comptroller for the City
of New York refused or neglected for more than thirty (30) days,

and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. On May 30, 2014, pursuant to General Municipal Law 50(h), a hearing was held.

7. This action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

8. Defendant has neither settled nor adjusted plaintiff's claim.

9. Defendant owns, operates, manages, maintains and/or has a department known as the New York City Police Department.

10. At all times hereinafter mentioned, defendant P.O. DANIEL COY SHIELD NUMBER 380, was an agent, servant and/or employee of either defendant CITY and NYPD, or both.

11. At all times hereinafter mentioned, defendant P.O. MURTAZA MANDLIYADAV SHIELD NUMBER 721, was an agent, servant and/or employee of either defendant CITY and NYPD, or both.

12. This action falls within one or more of the exceptions set forth in CPLR §1602.

FIRST CAUSE OF ACTION

13. On March 13, 2014, plaintiff was falsely arrested by members of defendant's Police Department, and more specifically Defendants P.O. DANIEL COY SHIELD NUMBER 380 and P.O. MURTAZA MANDLIYADAV SHIELD NUMBER 721.

14. Plaintiff was arrested without probable cause and justification.

15. As a result of said arrest, plaintiff was imprisoned.

16. Plaintiff alleges that he was falsely arrested and imprisoned.

17. As a result, plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

18. Plaintiff alleges that he was falsely arrested and wrongfully imprisoned as aforesaid.

19. As a result of the aforesaid, plaintiff was caused to suffer a violation of his state and federal rights.

20. The aforesaid was due to the carelessness, recklessness and negligence of defendant in the ownership, operation, maintenance and control of its aforesaid Police Department and its employees, including but not limited to Defendants P.O. DANIEL COY SHIELD NUMBER 380 and P.O. MURTAZA MANDLIYADAV SHIELD NUMBER 721.

21. As a result of defendant's negligence, plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

22. Plaintiff alleges that he was falsely arrested and wrongfully imprisoned as aforesaid.

23. As a result of the aforesaid, plaintiff was caused to suffer serious and permanent personal injuries, embarrassment, humiliation, stress, depression, psychological difficulties, and emotional distress.

24. The aforesaid was due to the carelessness, recklessness and negligence of defendant in the ownership, operation, maintenance and control of its aforesaid Police Department and its employees, including but not limited to Defendants P.O. DANIEL COY SHIELD NUMBER 380 and P.O. MURTAZA MANDLIYADAV SHIELD NUMBER 721.

25. As a result of defendant's negligence, plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

26. Plaintiff was maliciously prosecuted by defendant.

27. As a result of defendant's malicious prosecution plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

28. Plaintiff alleges that excessive force was used in falsely arresting and wrongfully imprisoning him.

29. As a result of the aforesaid, plaintiff was caused to suffer serious and permanent personal injuries, embarrassment, humiliation, stress, depression, psychological difficulties, and emotional distress.

30. The aforesaid was due to the carelessness, recklessness and negligence of defendant in the ownership, operation, maintenance and control of its aforesaid Police Department and its employees, including but not limited to Defendants P.O. DANIEL COY SHIELD NUMBER 380 and P.O. MURTAZA MANDLIYADAV SHIELD NUMBER 721.

31. As a result of defendants' negligence, plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

32. Defendants committed an assault upon the plaintiff.

33. As a result, plaintiff sustained serious personal injuries as aforesaid.

34. As a result of defendants' assault, plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

35. Defendants intentionally committed a battery upon the plaintiff.

36. As a result, plaintiff sustained serious personal injuries as aforesaid.

37. As a result of defendants' battery, plaintiff has been damaged in an amount to be determined at trial, and which is in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendant herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction on each Cause of

Action, together with the costs and disbursements of this action.

Yours, etc.,

A handwritten signature in blue ink, appearing to read "Mark E. Seitelman".

MARK E. SEITELMAN LAW OFFICES, P.C.
Attorneys for Plaintiff
111 Broadway, 9th Floor
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(212) 962-2626